



CHAPTER Iviii.

An Act to confirm a Scheme of the Charity Commissioners for the application or management of the Charity consisting of the Bethlehem Chapel in the Civil Parish of Tryddyn in the County of Flint. [18th December 1916.] A.D. 1916.

WHEREAS the Charity Commissioners in their report to His Majesty of their proceedings during the year nineteen hundred and fourteen reported that they had approved and certified a scheme for the application or management of the Charity consisting of Bethlehem Chapel in the civil parish of Tryddyn in the county of Flint comprised in an indenture dated seventh September eighteen hundred and seventy-four to which Charity the Charitable Trusts Acts 1853 to 1894 were extended by an Order of the Charity Commissioners of the twenty-seventh March nineteen hundred and fourteen :

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The said scheme is hereby confirmed Provided always that nothing in this Act or in the said scheme shall be held to interfere with the ordinary jurisdiction over endowed charities now exerciseable or hereafter to become exerciseable by the High Court of Justice and the Charity Commissioners. Confirmation of scheme.

2. This Act may be cited as the Bethlehem Chapel (Tryddyn) Charity Scheme Confirmation Act 1916. Short title.

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S C H E D U L E.

Scheme for the application or management of the Charity consisting of Bethlehem Chapel in the Civil Parish of Tryddyn in the County of Flint comprised in an Indenture dated 7th September 1874.

SCHEME.

1. The above-mentioned Charity and its endowment consisting of the above-mentioned chapel shall be administered and managed subject to and in conformity with the provisions of this scheme.

2. The following persons shall be the first trustees of the Charity under this scheme:—

JOHN INGMAN of Erwgoed collier;

JOHN PETER GEORGE of Tryddyn Uchaf farmer both in Nerquis;

EVAN JONES of Ty Draw farmer;

ROBERT OWEN GEORGE farmer;

ROBERT ELLIS ROBERTS of Scotland Farm farmer;

EVAN OLDFIELD of Cae Gwydd labourer;

WILLIAM SMALLWOOD of Pant Isaf collier;

ROBERT OLDFIELD of Top y rhos collier; and

SAMUEL EVANS of Tygwyn collier all in Tryddyn;

The Reverend JOHN IVOR JONES of Coed Talon minister of the Gospel;

The Reverend ISAAC CHARLES ROBERTS of Gwernymynydd minister of the Gospel;

OWEN WYNNE of Cilcain farmer; and

JOHN ELIAS EVANS of Gwernymynydd coal merchant all in the county of Flint; and

The Reverend JOHN GARMON OWEN minister of the Gospel; and

PETER BRYAN carrier both of Llanarmon in the county of Denbigh.

3. The said chapel is hereby vested in the said persons for all the estate and interest therein belonging to or held in trust for the Charity.

4. The said chapel shall be held henceforth by the trustees thereof upon trust for the Welsh Calvinistic Methodist Connexion according to the constitution and regulations thereof set forth in a certain deed poll dated the 10th August 1826 and enrolled in the Court of Chancery

on the 8th December 1826 and usually known as the constitutional deed of the said Connexion but so that by way of extension of or addition to the powers and provisions of the said deed as regards the said chapel the following powers and provisions shall have effect that is to say:—

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- (a) The trustees shall permit the said chapel to be used as a place of religious worship by a congregation of Protestants belonging to the said Connexion and shall permit such person and persons as shall be approved or appointed according to the regulations of the said Connexion as set forth in the said deed and no other person to preach minister and perform other acts of religious worship therein and shall permit the said chapel to be used for such other purposes as the said trustees may think fit but subject to any regulations as to such user prescribed by the county monthly meeting of Flintshire or any quarterly association of the said Connexion:
- (b) The trustees shall let the seats in the said chapel and receive and apply the income arising therefrom as the said county monthly meeting or the quarterly association shall direct:
- (c) The trustees shall have power to sell mortgage exchange or let the said chapel or any part thereof as the quarterly association may direct and to make and execute all such instruments and do and concur in all such acts as may be needful or expedient for carrying such directions into effect:
- (d) The trustees shall hold the moneys to arise from any such sale or mortgage or received by way of equality of exchange and any hereditaments to be taken in exchange upon trust for the said Connexion and to assure and dispose of the same as the quarterly association shall direct and shall hold the moneys to arise from any such letting upon trust to dispose thereof as the said county monthly meeting or the quarterly association shall direct:
- (e) It shall be lawful for the said county monthly meeting at any time to remove any person from being a trustee of the Charity:
- (f) If any trustee for the time being of the Charity shall remain out of England and Wales for more than twelve calendar months or shall cease to be a member in full communion with the said Connexion he shall thereupon be disqualified to act as a trustee of the Charity:
- (g) Upon the removal disqualification death desire to be discharged or incapacity of any trustee of the Charity the said county

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monthly meeting may appoint any other fit person being a member in full communion with the said Connexion to be a trustee in the place of the trustees so removed disqualified dead desiring to be discharged or becoming incapable to act and upon every such appointment the number of the trustees may be augmented or reduced :

(h) The said county monthly meeting shall be the persons nominated for the purpose of appointing new trustees for all purposes of the Trustee Act 1893 :

(i) A declaration under the hand of the chairman of the said county monthly meeting that any resolution has been passed by such meeting shall be sufficient evidence of such resolution having been duly passed by the meeting and of the validity and formality of the meeting :

Provided always that notwithstanding the powers and provisions aforesaid the said chapel shall (save as hereinafter provided) be held subject to the following restriction viz. that it shall not be lawful for the trustees to make or grant otherwise than with the express authority of Parliament or with the previous sanction of the Charity Commissioners or of a court of competent jurisdiction any sale mortgage or charge thereof or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding 21 years but so nevertheless that the aforesaid restriction shall not apply so long as the said chapel is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is bonâ fide used as a place of meeting for religious worship.

5. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any of the provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder.

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